Responsible Office: Human Resources
Date Reviewed (no substantive changes): 10/21/2024

Classified Employee Discipline

A permanent employee may only be disciplined for cause. Disciplinary actions can only include reassignments, suspensions without pay, reductions in pay, involuntary demotions, and dismissals.

An employee may be verbally suspended without pay when his continued presence at work would pose a significant hazard to health, safety or the efficiency of the public service. The employee shall be told that he is being suspended and the reasons therefore and, when feasible, shall be given an opportunity to respond.

Due Process

No permanent classified employee may be removed or subjected to any disciplinary action, other than an emergency suspension, until he has been given oral or written notice of the proposed action.

1. A permanent classified employee may be removed or subjected to any disciplinary action other than an emergency suspension or a suspension pending criminal proceedings, shall be given prior written notice, which:
    a. States what action is being taken and the effective date thereof;
    b. Contains such information as will fully inform the employee of the conduct for which the action is being taken and will enable him to prepare a defense, including, where pertinent, the date, time and place of such conduct and the names of persons directly involved in or affected by such conduct;
    c. Contains the following notification: "You have the right to appeal this action to the State Civil Service Commission. The time limits and procedure for appealing are contained in Chapter 13 of the Civil Service Rules," and
    d. Advises the employee where a copy of Chapter 13 of the Civil Service Rules can be found.
2. A permanent classified employee who is subjected to an emergency suspension shall be given written notice within 15 calendar days following the effective date of the emergency suspension. The notice shall contain the information required by paragraph 1 above.
3. A permanent classified employee who is subjected to a suspension pending criminal proceedings shall be given written notice within 15 calendar days following the date the Commission allowed such a suspension. The notice shall contain as much of the information required by paragraph a above as is available to the Appointing Authority.
4. Written notice is considered given;
    a. Upon delivery to the employee or a person of suitable age and discretion who resides with the employee; or
    b. On the 7th calendar day after it is mailed to the employee, with correct postage, at the most recent address he furnished in writing to his Human Resources Office.

[End]